



Licensing Sub-Committee

MINUTES of the OPEN section of the Licensing Sub-Committee held on Thursday 15 January 2026 at 10.00 am at Online/Virtual

PRESENT:	Councillor Renata Hamvas (Chair) Councillor Sunil Chopra Councillor Margy Newens
OFFICER SUPPORT:	Toyin Calfos, legal officer Jayne Tear, licensing officer Wesley McArthur, licensing as a responsible authority officer Andrew Weir, constitutional officer

1. APOLOGIES

This was a virtual licensing sub-committee meeting.

The chair explained to the participants and observers how the virtual meeting would run. Everyone then introduced themselves.

There were no apologies for absence.

2. CONFIRMATION OF VOTING MEMBERS

The voting members were confirmed verbally, one at a time.

3. NOTIFICATION OF ANY ITEMS OF BUSINESS WHICH THE CHAIR DEEMS URGENT

There were none.

4. DISCLOSURE OF INTERESTS AND DISPENSATIONS

There were none.

5. LICENSING ACT 2003: MONSTER SAPO LIMITED, BASEMENT, 9 CAMBERWELL CHURCH STREET, LONDON SE5 8TR

The licensing officer presented their report. Members had questions for the licensing officer.

The applicant addressed the sub-committee through their interpreter. Members had questions for the applicant. The daughter of the applicant also addressed the sub-committee. Members had questions for the daughter of the applicant.

The meeting adjourned at 11.02am for a comfort break.

The meeting reconvened at 11.08am.

The officer representing licensing as a responsible authority addressed the sub-committee. Members had questions for the officer.

The sub-committee heard from an other person objecting to the application. Members had questions for the other person.

All parties were given up to five minutes for summing up.

The meeting adjourned at 11.53am for the sub-committee to consider its decision.

The meeting reconvened at 12.43pm and the chair advised everyone present of the decision.

RESOLVED:

Decision

That the application made by Monster Sapo Limited to vary the premises licence under Section 34 of the Licensing Act 2003 in respect of the premises known Monster Sapo Limited, Basement, 9 Camberwell Church Street, London SE5 8TR be granted as follows:

The sale by retail of alcohol (on sales):	Monday, Wednesday and Thursday: 16:00 to 22:30 Friday and Saturday: 17:00 to 00:30 Sunday: 16:00 to 22:30
Late night refreshment (indoors)	Friday and Saturday 23:00 to 00:00

The provision of regulated entertainment in the form of recorded music (indoors):	Monday, Wednesday and Thursday: 16:00 to 22:30 Friday and Saturday: 17:00 to 00:30 Sunday: 16:00 to 22:30
Opening hours	Monday, Wednesday and Thursday: 16:00 to 23:00 Friday and Saturday: 17:00 to 01:00 Sunday: 16:00 to 23:00

Conditions

The operation of the premises under the licence shall be subject to the relevant mandatory conditions, conciliated conditions agreed with the Metropolitan Police Service and the Environmental Protection Unit and, any conditions derived from the operation schedule highlighted in Parts I, K, L and M of the application form.

Conditions imposed by the Metropolitan Police Service

1. That a minimum of 1 SIA registered door supervisor shall be employed at the premises at all times after 21:00 hours daily. They shall be employed to control entry to the premises, to deal with the searching / scanning of customers, to deal with any anti-social or disorderly behaviour at the premises, to de-escalate confrontations, to assist with emergency escape from the premises, to deal with the ejection of people from the premises, to assist management in liaising with the police regarding instances of crime and to assist with ensuring that the premises' dispersal policy is adhered to. When deployed, they shall remain at the premises until all patrons have vacated the premises and until at least 30 minutes after the premises close. The door supervisors shall be easily identifiable.
2. That when SIA door supervisors are employed, the following conditions shall apply:
The premises licence holder or DPS (or nominated deputy) shall ensure that the following details for each door supervisor, are contemporaneously entered into a bound or electronic register kept for that purpose:
 - a) Full name
 - b) SIA Certificate number and or badge number, or registration number of any accreditation scheme recognised by the licensing

- authority (including expiry date of that registration or accreditation)
 - c) The time they began their duty
 - d) The time they completed their duty.
3. That SIA shall be hired by an approved contractor as per Approved Contractor Scheme (ACS)
 4. That when SIA registered door supervisors are employed at the premises they shall be supplied with, and shall use, metal detectors (either metal detection arches or handheld metal detectors) to search all customer entries or re- entries to the premises. Prior to the premises opening the metal detectors shall be checked to ensure that they are in full working order. A log of such checks shall be kept at the premises and shall include the name of the person who undertook the check, the outcome of the check, and the time and date of the check. The log shall be made immediately available to police and authorised council officers on request.
 5. That when SIA registered door supervisors are employed at the premises they shall be supplied with body worn video which shall be worn at all times. Any recordings made using body worn video shall be made available to Police and authorised council officers upon request.

Conditions imposed by the environmental protection team

1. That during any licensed entertainment on the premises, all doors and windows shall remain closed (except for access or egress).
2. That amplified music, song, or speech shall not be broadcast in external areas at any time.
3. That the premises shall be adequately mechanically ventilated and comfort cooled to allow doors and windows to remain closed during licensed entertainment.
4. That customers permitted to temporarily leave and then re-enter the premises to smoke must be restricted to a designated smoking area.
5. That suitably qualified or experienced persons shall be employed at all times, whilst licensable activity is being provided, and shall take all reasonable steps to ensure that patrons do not cause a nuisance in the vicinity of the premises.
6. That the premises management shall regularly monitor outside the premises to ensure that the volume and bass levels of any licensed entertainment is kept at a level that does not cause disturbance at the closest or most exposed noise-sensitive facade to ensure the prevention of public nuisance.
7. That a comprehensive dispersal policy shall be produced and implemented at

the premises, with all staff trained on the most recent iteration of the policy. A record of staff training on the dispersal policy shall be kept at the premises and a copy of the policy and training records be made available to the council or police on request.

8. That all external plant required for the operation of the premises (air handling plant, condensers, kitchen extraction systems, etc.) shall be designed, installed, and maintained to ensure that noise output from the external plant does not cause a public nuisance or intrude inside the nearest, or most exposed, noise sensitive premises.
9. That any kitchen extraction system required for the operation of the premises shall be installed with an appropriate discharge location (i.e. eaves height) and with adequate odour control filters installed and maintained to ensure that odour emissions do not cause a public nuisance or intrude inside in the nearest or most exposed sensitive premises.

Conditions imposed by the Licensing Sub-Committee

1. That 1 SIA personnel shall be present on the premises from 22:00 when the premises is opened beyond 00:00 and shall remain until all patrons are disperse.

This condition amends the Metropolitan's Police condition 1 in the following way:

That 1 SIA registered door supervisor will be employed at the premises from 22:00 when the premises is opened beyond 00:00. They will be employed to control entry to the premises, to deal with the searching / scanning of customers, to deal with any anti-social or disorderly behaviour at the premises, to de-escalate confrontations, to assist with emergency escape from the premises, to deal with the ejection of people from the premises, to assist management in liaising with the police regarding instances of crime and to assist with ensuring that the premises' dispersal policy is adhered to. When deployed, they shall remain at the premises until all patrons have vacated the premises and have dispersed. The door supervisors shall be easily identifiable.

2. That all relevant staff shall be trained in their responsibilities under the Licensing Act 2003, the promotion of the licensing objectives and the terms and conditions of this licence. Records pertaining to such training ('the staff training logs') shall be kept at the premises, shall be updated every 6 months and shall be made immediately available to authorised officers on request. The training logs shall include the trainee's name (in block capitals), the trainer's name (in block capitals), the date(s) of training and a declaration that the training has been received and understood by the trainee. If the staff training logs are a paper hardcopy, then the signature of the trainee, the signature of the trainer shall be included.

Recommendation

1. That the premises shall endeavour to not use single use plastics where possible.

Reasons

The licensing sub-committee convened to consider an application to vary an existing licence in respect of the premises known as Monster Sapo Limited, Basement, 9 Camberwell Church Street, London SE5 8TR.

The licensing sub-committee heard from the licensing officer who outlined the nature of the application. She confirmed the premises was located within a cumulative impact area (CIA) and that the hours applied for were inconsistent with Southwark's statement of licensing policy 2021-2026.

The officer went on to state, the objecting responsible authorities, namely, the Metropolitan Police Service and the environmental protection team, had conciliated after the applicant had agreed to abide by a number of conditions put forward by them.

The officer stated that licensing as a responsible authority and one other person had been unable to conciliate. She outlined their concerns, which related to the operational hours, nuisance, anti-social behaviour and crime and disorder.

The licensing sub-committee heard from the applicant who was assisted by an interpreter. The applicant empathetically apologised for the breaches of her existing licence that had taken place prior to the variation application.

The applicant advised that she had agreed to all of the conditions put forward by the Metropolitan Police Service and the environmental protection team during the conciliation process and suggested that those conditions would alleviate not only the issues that arose around the premises prior to the variation application but would also allay the concerns put forward by the two remaining objectors.

The applicant stated that she appreciated that the committee members may wish to add further conditions which she said she would adhere to. She also said that she was committed to working towards having good relations with the premises' neighbours.

The applicant explained that the premises had a capacity for 50 people but would ordinarily accommodate around 30 patrons. Patrons attended mainly to partake in the Colombian pastime of Sapo which is a traditional game. She said that the restaurant is frequented by Colombian people as it is well known for having the most authentic version of the game. Whilst playing the game, patrons can have traditional food and listen to traditional music. She stated that the game is so popular, they would organise tournaments.

In answer to the licensing sub-committee's questions, the applicant accepted that

there were four occasions where the premises operated outside the terms of its licence in relation to the operation of the CCTV and closing hours. The applicant stated that changes had been made to the CCTV system to ensure compliance could be maintained and said that she strictly enforced closing times. As a result of the changes implemented she anticipated compliance in respect of her licence conditions going forward.

The licensing officer confirmed that on Friday 9 and Saturday 10 January, two compliance checks were made on the premises. On both occasions the premises was found to be operating within the parameters of its licence.

The licensing sub-committee heard from the licensing as a responsible authority officer. The officer noted that there had been a number of breaches of its existing licensing conditions in relation to opening hours and the CCTV.

The officer noted that some of the conditions conciliated with the environmental protection team, mirrored existing conditions on the current licence. The officer went on to opine that the addition of new conditions would not necessarily lead to an outcome of compliance.

It was noted that the premises was situated in a CIA and that the hours applied for, were significantly outside of those stated in Southwark's statement of licensing policy 2021-2026. The officer submitted that these two reasons were sufficient for the application to be refused.

The authority pointed out, the late-night refreshment extension hours were inconsistent with the hours applied for in relation to regulated entertainment, supply of alcohol and the operational hours. It stated that it would mean the premises could not operate as a restaurant during the extended hours.

The authority submitted that the licence ought not to be granted, suggesting that more time was required in order for the applicant to show she was able to comply with the current licence conditions.

The licensing sub-committee heard from the resident objector, other person 1.

He stated that there had been numerous breaches of the existing licence which caused noise nuisance between the hours of 04:00 and 06:00 on Monday and Tuesday mornings, every couple of weeks, a few months ago. He stated, the hours applied for were excessive and felt it was unreasonable that he should be kept up past 01:00 during the working week. He went on to say he was content with the premises being open until 01:00 on a Friday and Saturday as this would be consistent with other premises in the area.

In answer to the licensing sub-committee's questions, the applicant again expressed remorse for the noise nuisance caused but stated she was not aware that there had been a noise nuisance at the time, as it had not been reported to her. She stated that the landlord is in the process of assessing the building's

structure with a view to see how noise can be limited going forward.

The applicant stated she had not read Southwark's statement of licensing policy 2021-25 but would nevertheless adhere to not using single use plastics wherever possible.

After summing up, the licensing sub-committee retired to consider the application.

Firstly, they considered whether the variation application should be granted in light of the premises being in a CIA.

The licensing sub-committee formed the view that in this instance the application could be granted as members of the committee were satisfied that to do so would promote the use of licensed premises by a group of persons within the borough that are not well serviced with licensed premises within the borough.

Despite this overriding view, all members had also formed the view that the applicant and the premises staff would all benefit from some external training in their responsibilities under the Licensing Act 2003, the promotion of the licensing objectives and the terms and conditions of its licence and therefore conditioned it.

The licensing sub-committee agreed with the licensing as a responsible authority officer and other person 1, in that the hours applied for in the application were unreasonable in the circumstances, given that there were issues with compliance on the existing licence.

On that basis, the committee decided to vary the licence in respect of Fridays and Saturdays only. The licensing sub-committee were persuaded that allowing the licence to be varied in respect of Fridays and Saturdays only, up to 01:00 would be an appropriate and proportional outcome

In light of its decision to grant the application, the licensing sub-committee consider the first condition agreed with the police and amended it so as to reflect the reduced varied hours.

In reaching its decision, the licensing sub-committee had regard to all the relevant considerations, the four licensing objectives and considered that its decision was appropriate and proportionate in all the circumstances.

Appeal rights

The applicant may appeal against any decision:

- a) To impose conditions on the licence.
- b) To exclude a licensable activity or refuse to specify a person as premises supervisor.

Any person who made relevant representations in relation to the application who desire to contend that:

- a) The licence ought not to be been granted; or
- b) That on granting the licence, the licensing authority ought to have imposed different or additional conditions to the licence, or ought to have modified them in a different way

may appeal against the decision.

Any appeal must be made to the Magistrates' Court for the area in which the premises are situated. Any appeal must be commenced by notice of appeal given by the appellant to the justices' clerk for the Magistrates' Court within the period of 21 days beginning with the day on which the appellant was notified by the licensing authority of the decision appealed against.

The meeting ended at 12.51pm.

CHAIR:

DATED: